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LINE: 7

25-CIV-10194

JESSICA C. BRADLEY VS. SKYHOP GLOBAL LLC, A FLORIDA LIMITED LIABILITY COMPANY, ET AL

JESSICA C. BRADLEY
SKYHOP GLOBAL LLC, A FLORIDA LIMITED LIABILITY COMPANY

KYLE DECAMP
KATHRYN T MCGUIGAN

DEFENDANT SKYHOP GLOBAL LLC'S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

TENTATIVE RULING:

For the reasons stated below, Defendant SkyHop Global LLC's motion is **GRANTED IN PART** solely to compel arbitration of the gateway enforceability dispute under Section V of the Mutual Arbitration Agreement. The Court has reviewed the operative complaint and finds that its pleaded facts do not establish a qualifying sexual-harassment dispute under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA). The Court makes no present order compelling arbitration of the underlying merits claims or of claims against nonmoving defendant Paul Tokuda. The action against SkyHop is **STAYED** pending determination of the gateway dispute, as specified below.

BACKGROUND

Plaintiff filed the operative complaint on December 31, 2025, asserting 16 employment-related causes of action against SkyHop and individual defendant Paul Tokuda, including gender discrimination, retaliation, harassment/hostile work environment (Gov. Code, § 12940, subd. (j)), wage-and-hour claims, and wrongful termination. She alleges that she began working as a shuttle driver on July 9, 2025, and that SkyHop terminated her by telephone on October 22, 2025, following an October 11 noncollision braking incident. (Complaint, ¶¶ 11, 20–23.) Hailom's employment records identify October 25, 2025, as the date Plaintiff ceased employment. (Original Hailom Decl., ¶ 6.) The Court does not resolve that employment-date discrepancy on this motion. The complaint, including its Civil Rights Department (CRD) charge and right-to-sue exhibit, has now been reviewed together with the motion papers.

The complaint alleges that SkyHop subjected Plaintiff to disparate discipline: it terminated her after a driving incident but retained at least one similarly situated male employee allegedly involved in a comparable incident. Plaintiff also alleges that, after she discussed denied meal and rest breaks with coworkers, Defendants subjected her to heightened scrutiny and an intimidating and hostile work environment culminating in termination. (Complaint, ¶¶ 19, 22–24, 32, 38, 41–45.) The third cause of action incorporates these facts but does not identify particular sex-based remarks, unwanted sexual conduct, or other distinct harassing acts separate from alleged disparate discipline and scrutiny following workplace wage complaints. The Court does not require sexually explicit words or touching as a categorical prerequisite to harassment; the issue is the absence of factual allegations of harassing conduct because of sex. The CRD charge attached as

Exhibit 1 checks a box alleging sex/gender harassment, but its narrative likewise describes unequal discipline, the response to wage complaints, and termination rather than additional particularized sex-based harassing conduct. (Complaint, Ex. 1, CRD charge, pp. 1–2.)

The Court considered: (1) the December 31, 2025 complaint and its attached CRD charge/right-to-sue materials; (2) SkyHop’s February 23, 2026 notice, motion, and memorandum, and its March 3 amended notice setting the September 24 hearing; (3) the original declaration of Timnit Hailom, including Exhibit A (offer letter), Exhibit B (Mutual Arbitration Agreement), and Exhibit C (Paylocity acknowledgment record); (4) the declaration of Mason J. Hattam and correspondence exhibits concerning the arbitration demand and refusal; (5) Plaintiff’s September 11 opposition and the declarations of Bradley and Kyle R. DeCamp, including DeCamp Exhibit A, SkyHop’s produced onboarding materials (SKYHOP-Bradley 000001–000054); (6) Plaintiff’s six written evidentiary objections; and (7) SkyHop’s September 17 reply, supplemental Hailom declaration, responses to Plaintiff’s objections, and SkyHop’s objections to the Bradley and DeCamp declarations. The Court considers the supplemental declaration as a response to authentication and business-records issues raised in opposition and will permit focused argument on that additional evidence at the hearing.

SkyHop expressly seeks enforcement of the delegation provision and arbitration of enforceability; alternatively, it asks the Court to compel Plaintiff’s merits claims and stay litigation. (Motion, pp. 2–3; amended notice, pp. 2–3.) SkyHop’s counsel sought voluntary arbitration by letter dated February 6, 2026; Plaintiff’s counsel declined, and the parties subsequently exchanged correspondence about enforceability. (Hattam Decl., ¶¶ 2–6, Exs. A–B; DeCamp Decl., ¶¶ 4–5.)

LEGAL STANDARDS

SkyHop bears the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence. The Court resolves disputed formation questions by weighing the evidence; a contractual delegation provision does not delegate the threshold question whether any agreement containing it was formed. (Code Civ. Proc., § 1281.2; Civ. Code, § 1633.9; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842–844; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060–1062.) When an agreement contains clear delegation language, a challenge to the agreement as a whole ordinarily goes to the arbitrator unless a party specifically contests the separate delegation agreement. (*Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 70–72; *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 242–245.)

A mandatory employment arbitration agreement may be procedurally unconscionable, but unconscionability requires both procedural and substantive unfairness; an adhesive agreement must be scrutinized without treating adhesion alone as dispositive of substantive unconscionability. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113–114; *Fuentes v. Empire Nissan, Inc.* (2026) 19 Cal.5th 93.) An independently applicable statute may override delegation. Under 9 United States Code section 402(b), the Court—not the arbitrator—decides the EFAA’s applicability notwithstanding a contractual delegation provision. To determine whether that statute applies, the Court evaluates the actual alleged conduct, not merely the title of a cause of action. (9 U.S.C. §§ 401(4), 402; *Quilala v. Securitas Security Services USA, Inc.* (2025) 117 Cal.App.5th 75; *Decloedt v. Radnet Management, Inc.* (2026) No. B343963 [published opinion filed June 26, 2026, certified July 7, 2026].)

FORMATION AND EVIDENCE ACTUALLY FILED

Offer letter, promised email, and Paylocity acknowledgments

Hailom states that Bradley applied on June 3, 2025, using a personal email address, received an emailed offer letter on June 16, and that the offer letter was acknowledged on June 17, 2025, at 1:21:11 a.m. UTC. The signed offer letter describes arbitration as a condition of employment and states that the arbitration agreement is “attached in a separate email” and that the employee would have at least 72 hours to review and sign it before final acceptance. (Original Hailom Decl., ¶¶ 5–7, Ex. A; DeCamp Decl., ¶ 7, Ex. A [SKYHOP-Bradley 000001].) The supplied record does not contain a separately transmitted email attaching the arbitration agreement. That omission bears on notice and the promised process, but does not establish that Bradley never received the agreement through Paylocity.

Hailom states that SkyHop initiated Paylocity onboarding on June 30. Employees receive an individual username and temporary password, create a private password at initial login, open onboarding documents through individual links, and type a name to acknowledge each document. Hailom’s original declaration records that “an individual” used Bradley’s account and acknowledged Exhibit B in her name at 3:42:19 a.m. UTC on July 4, 2025. Exhibit C lists the name, acknowledgment, timestamp, and IP address; it does not itself identify a human eyewitness to the keystrokes. (Original Hailom Decl., ¶¶ 8–10, Exs. B–C; DeCamp Decl., ¶ 8, Ex. A [SKYHOP-Bradley 000041].)

In the supplemental declaration, Hailom specifies her positions and familiarity with Paylocity, supplies the foundation for business-records creation and retention, explains the unique-credential and document-opening procedures, and identifies the same specific acknowledgment in Bradley’s account. She converts its UTC timestamp to 8:42:19 p.m. Pacific time on July 3, 2025. (Supp. Hailom Decl., ¶¶ 1–8.) These additional facts substantially address the authentication gap raised by Plaintiff and are analogous to the individualized security-process showing accepted in *Espejo, supra*, 246 Cal.App.4th at pages 1061–1062. They are circumstantial evidence of attribution, not direct observation that Bradley personally typed her name. The Court credits the individualized system and acknowledgment records for the limited finding that the agreement was made available and acknowledged through Bradley’s account.

Bradley and DeCamp declarations; competing inferences

Bradley acknowledges completing onboarding but states that she does not recall signing or reviewing a Mutual Arbitration Agreement, receiving the separately promised email, or logging into Paylocity at the recorded time. She disputes knowingly accepting arbitration and describes the Covenant Care demand address as confusing. (Bradley Decl., ¶¶ 4–24, 25–34.) These statements are admissible evidence of her recollection and experience; they do not affirmatively establish that someone else accessed her account. Their weight is assessed with, not substituted for, the electronic and personnel records.

DeCamp attaches SkyHop’s produced onboarding records and points to an On-Duty Meal Period Agreement with a June 14, 2025 signature date, preceding the June 17 offer-letter signature. (DeCamp Decl., ¶¶ 6–10, Ex. A [SKYHOP-Bradley 000033].) Hailom responds that the meal-period form is a separate onboarding document created through a different step. (Supp. Hailom Decl., ¶ 9.) Although that response does not explain the earlier date, the record does not establish that the meal-period form and arbitration acknowledgment share the

same signing procedure. The discrepancy is considered but does not, by itself, disprove Exhibit C's individualized record.

Acceptance by employment

Exhibit B states that an employee accepts the arbitration offer by commencing employment or remaining employed for 15 days after notice; it also says that an electronic signature is not essential and that the employee cannot opt out while retaining employment. (§ XII and introductory paragraphs.) Hailom's records place Bradley's employment from July 9 through October 25, 2025. (Original Hailom Decl., ¶ 6, Ex. B.) The offer letter expressly refers to arbitration, and the individualized Paylocity evidence supports access to the agreement before Bradley began employment. The Court therefore finds by a preponderance that the parties formed an agreement containing Section V; the Court does not rest this finding solely on the bare appearance of Bradley's typed name. Employment alone would not establish assent without adequate notice. (See *Diaz v. Sohnen Enterprises* (2019) 34 Cal.App.5th 126, 130.)

Covenant Care reference

Section VI of the filed agreement directs that a demand "made to Covenant Care" may be delivered to that entity's general counsel, although the introductory definition identifies SkyHop Global LLC, its parents, subsidiaries, and affiliates as the Company, and Section I lists covered employment claims. (Original Hailom Decl., Ex. B, §§ I, VI; Bradley Decl., ¶¶ 25–32; DeCamp Decl., ¶ 9.) The misdirected address is a real drafting irregularity and may create uncertainty about demand procedures; the Court does not assume an unstated corporate relationship or rewrite the provision as a judicial finding of a clerical error. It does not, alone, show that the contracting employer is someone other than SkyHop or defeat the evidence of formation. Any dispute about applying this procedure remains subject to the EFAA and delegation analysis below.

UNCONSCIONABILITY CONTENTIONS AND SCOPE OF DELEGATION

Plaintiff contends that the arbitration agreement is unenforceable because it was presented as a mandatory, nonnegotiable condition of employment; the onboarding process and offer letter were confusing; Section III restricts class, collective, and nonindividual PAGA claims; and Section VIII requires an employee initiating arbitration to contribute up to \$450. The Court considers these asserted grounds for unconscionability in determining the scope of its present inquiry under Section V.

Procedural unconscionability: The agreement conditions employment on acceptance, provides no employment-preserving opt-out, and states that it applies even if the employee does not read it. The offer letter promises a separate email and a 72-hour opportunity to review, but SkyHop relies on later Paylocity delivery without producing the promised separate email. The erroneous Covenant Care reference adds uncertainty. Those circumstances support an adhesive, at least somewhat procedurally unconscionable presentation. (Original Hailom Decl., Exs. A–B; Bradley Decl., ¶¶ 5–24; DeCamp Decl., ¶¶ 7–10; Armendariz, *supra*, 24 Cal.4th at pp. 113–114.) The supplemental evidence bears on notice and formation but does not convert the arrangement into a negotiated contract.

Substantive unconscionability: Calling the contract a "unilateral offer" describes its method of acceptance; it does not prove that only Bradley must arbitrate. Section I includes employer claims such as trade-secret,

repayment, and duty-of-loyalty claims as well as employee statutory claims. Section VIII says SkyHop pays arbitrator fees and limits an employee's contribution to an amount equal to the court filing fee, up to \$450; on its face, this is not necessarily an arbitration-only cost, though its actual application to a statutory claim or a fee waiver could matter. Section III restricts collective and nonindividual proceedings, including PAGA, but Plaintiff has not pleaded a PAGA cause of action on the described record; enforceability and severability of a particular claim waiver would require a claim-specific analysis. These substantive concerns remain genuine issues for decision by the proper adjudicator, not an automatic basis for invalidating the entire agreement merely because it is mandatory. (Original Hailom Decl., Ex. B, §§ I, III, VIII–IX; Armendariz, *supra*, 24 Cal.4th at pp. 110–114; Fuentes, *supra*, 19 Cal.5th 93.)

These challenges concern principally the enforceability of the arbitration agreement as a whole. Because Plaintiff has not established a distinct basis for invalidating the delegation provision, Section V assigns resolution of the remaining enforceability questions to the arbitrator. The Court expresses no present determination on the ultimate validity of the agreement as a whole or the merits of the alleged FEHA and Labor Code violations.

DELEGATION, STATUTORY EXCEPTION, AND SCOPE

Section V and limits of the Court's finding

Section V gives the arbitrator “exclusive authority” over interpretation, applicability, enforceability, validity, and even formation of the agreement. The Court itself first determines whether an agreement containing that clause was formed, notwithstanding the clause's reference to formation. (Original Hailom Decl., Ex. B, § V; Rent-A-Center, *supra*, 561 U.S. at pp. 70–72.) Plaintiff challenges formation and the overall agreement's costs, claim waivers, and adhesive terms but does not develop a separate, specific basis for invalidating Section V itself—for example, an evidentiary showing that the disputed fee would unlawfully burden arbitration of the gateway dispute. The Court therefore enforces Section V and refers the gateway question of the remaining agreement's enforceability to arbitration. The Court does not presently compel arbitration of the underlying FEHA, wage, or other merits claims.

EFAA determination based on the operative complaint

The EFAA applies at the employee's election to a case relating to conduct alleged to constitute sexual harassment under applicable law; applicability is for the Court to decide notwithstanding delegation. (9 U.S.C. §§ 401(4), 402(a)–(b).) Harassment based on sex or sexual orientation need not involve a sexual proposition or physical contact. The Court nevertheless must identify factual allegations plausibly constituting prohibited harassment, rather than treating any count labeled “harassment” or “gender discrimination” as sufficient. (*Quilala v. Securitas Security Services USA, Inc.* (2025) 117 Cal.App.5th 75; *Decloedt v. Radnet Management, Inc.* (2026) No. B343963 [published June 26, 2026, certified July 7, 2026].) The events pleaded in this complaint occurred in 2025, after the EFAA's effective date, so the question here is whether the pleaded conduct is a qualifying dispute, not its timing.

The Court has examined the complaint's factual allegations and third cause of action. Paragraphs 22 and 32 allege a disparity between Plaintiff's termination and the treatment of a similarly situated male driver, potentially supporting a gender-discrimination theory. Paragraphs 19, 23, 24, 38, and 43 allege complaints

about wage-and-hour practices followed by scrutiny, unequal treatment, and termination. The third cause of action adds no particularized facts identifying sex-based harassing conduct apart from those personnel-management actions and the asserted response to wage complaints. The attached CRD charge marks sex/gender harassment but repeats the same factual narrative. (Complaint, ¶¶ 19, 22–24, 32, 38, 41–45 & Ex. 1, CRD charge, pp. 1–2.) Personnel-management decisions may support a discrimination claim but do not by themselves establish a distinct claim of harassing conduct under FEHA. (*Reno v. Baird* (1998) 18 Cal.4th 640, 645–647.) Unlike the complaints in *Quilala* and *Decloedt*, this complaint does not allege particularized humiliating, derogatory, threatening, or otherwise harassing conduct directed at Plaintiff because of her sex or gender. The Court does not decide the ultimate sufficiency of the third cause of action on a pleading motion; it decides only whether the operative complaint alleges a qualifying sexual-harassment dispute for purposes of the EFAA. On the present pleaded facts, it does not. Accordingly, the EFAA does not bar enforcement of Section V here. This conclusion concerns the complaint as presently pleaded and is without prejudice to any properly presented issue arising from a later amendment or additional proceedings.

EVIDENTIARY OBJECTIONS AND STAY

Plaintiff's six objections to the original Hailom declaration principally assert inadequate personal knowledge, foundation, authentication, hearsay, and improper legal conclusion concerning paragraphs 1, 6–10 and Exhibits A–C. The original and supplemental declarations together establish sufficient foundation for Hailom to describe company records, onboarding procedures, and the system-generated records. Plaintiff's objections are **OVERRULED** insofar as directed to those factual descriptions and records. The Court does not adopt Hailom's ultimate characterization of who personally signed as a legal conclusion or rely on any lay technical opinion beyond the stated system practices. (Evid. Code, §§ 702, 1271, 1400–1401; Civ. Code, § 1633.9.)

SkyHop's objections to the Bradley and DeCamp declarations are **OVERRULED** to the extent directed to Bradley's own recollection, her experience during onboarding, and counsel's authentication and identification of documents produced by SkyHop. The Court independently interprets the offer letter and arbitration agreement and gives no evidentiary weight to bare legal conclusions or speculation as to another user's identity. Remaining objections not necessary to the limited factual findings are not reached. These rulings address the material actually relied upon; the parties' objection papers and SkyHop's written responses have been considered.

The action against SkyHop is **STAYED** under Code of Civil Procedure section 1281.4 pending the arbitrator's gateway determination; the Court may revisit the stay upon that determination. Because Tokuda did not move and the present record does not independently establish his right to enforce this agreement, this ruling neither compels arbitration of claims against Tokuda nor automatically stays those claims. Any requested casewide stay requires a separate showing and order. The Court expresses no view on whether allegations of liability against Tokuda are ultimately meritorious.

DISPOSITION

Defendant SkyHop Global LLC's motion is **GRANTED IN PART**. The Court finds, based on the operative complaint, that Plaintiff has not alleged conduct constituting a qualifying sexual-harassment dispute under the EFAA; the statute therefore does not preclude enforcement of the separate delegation provision. The Court

finds that SkyHop has established formation of an agreement containing Section V by a preponderance of the evidence, based on the individualized Paylocity records and their authentication, together with the offer letter and subsequent employment after notice of the agreement. The Court enforces Section V and **COMPELS ARBITRATION ONLY** of the threshold dispute concerning the enforceability of the remainder of the arbitration agreement. The Court does not at this time order arbitration of the underlying employment claims or determine the ultimate enforceability of the agreement as a whole.

The proceedings against SkyHop are **STAYED** pending the arbitrator's determination of the delegated enforceability dispute. Whether the underlying employment claims must be arbitrated is reserved pending that determination, after which a party may seek any further appropriate order. This order does not compel arbitration of claims against nonmoving defendant Paul Tokuda and does not, without a separate showing, stay claims against him. Plaintiff's six evidentiary objections to the original Hailom declaration are **OVERRULED** as specified in Part VI; SkyHop's evidentiary objections to the Bradley and DeCamp declarations are resolved as stated in Part VI.

The Court reaches no adjudication on the merits of Plaintiff's discrimination, harassment, retaliation, or wage-and-hour causes of action. Its EFAA ruling is confined to the question whether the complaint, as presently pleaded, alleges conduct bringing this case within that statute. The parties may address at the hearing the supplemental evidence offered with SkyHop's reply and any specific factual or statutory issue material to the Court's limited findings.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and electronically submit a proposed order repeating the adopted tentative verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and provide notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 8

25-CLJ-00513

WELLS FARGO BANK, N.A. VS. SIAOSI E FOLAU, JR

WELLS FARGO BANK, N.A.
SIAOSI E FOLAU

HARLAN M. REESE

PLAINTIFF WELLS FARGO BANK, N.A.'S MOTION FOR JUDGMENT ON THE PLEADINGS AND OF NON-APPEARANCE

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s motion for judgment on the pleadings is **DENIED**. Plaintiff's request for judicial notice of Defendant's answer, the motion and order concerning requests for admission, and other identified filings in this action is **GRANTED** as to their existence and contents, not as blanket proof of all factual assertions appearing in them. (Evid. Code, § 452, subd. (d).)

LEGAL STANDARD

A plaintiff may obtain judgment on the pleadings when the complaint alleges facts sufficient to constitute a cause of action and the answer does not allege facts sufficient to constitute a defense. The grounds must appear on the face of the challenged pleading or in properly noticeable matters. (Code Civ. Proc., § 438, subds. (c)(1)(A), (d).) A plaintiff's motion ordinarily fails if the answer places a material element in issue. Deemed admissions may conclusively establish the particular facts admitted, notwithstanding inconsistent pleading denials. (Code Civ. Proc., § 2033.410, subd. (a).)

ANALYSIS

Defendant's deemed admissions establish the existence of an account ending in 5327, receipt of monthly statements requesting minimum payments, an account balance of \$11,550.95 as of January 16, 2025, nonpayment of any amount thereafter, and an admitted debt of at least \$11,550.95. (Request for judicial notice, Ex. B, request Nos. 1–6; order dated January 29, 2026.) They are significant admissions, but on the facts summarized in this motion they do not admit a particular payment due before January 16, 2025, nonpayment when due under the identified contractual terms, or another specific breach of the pleaded written contract. The Complaint alleges that Defendant failed to pay as agreed, but Defendant's Answer denies breach. The Court cannot enter judgment on a contested breach-of-contract element by treating all facts in the moving Complaint as admitted. (See Code Civ. Proc., § 438, subd. (c)(1)(A); *Reichert v. General Insurance Co.* (1968) 68 Cal.2d 822, 830.) The denial is without prejudice to a procedurally proper motion or trial supported by the contract, statements, admissions, and evidence establishing all required elements.